

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA

Case No.CA/WRIT/386/2015

In the matter of an application for an order in the nature of a Writ of Mandamus under Article 140 of the Constitution of the Democratic Socialist Republic of Sri Lanka for a Writ in the nature of Mandamus.

Nelumdeni Dewage Sirisoma,
Of No.94/11,
Kotakanda
Kaleliya.

Petitioner

- Vs. -

1. Divisional Secretary
Divisional Secretary's Office
Meerigama.
2. Commissioner General of Lands
Office of Land Commissioner General
Gregory's Road
Colombo 7.
3. The Land Officer,
Office of the District Land Officer
Divisional Secretariat
Meerigama.
4. M.K.D.S.Gunawardana (**Deceased**)
Minister of Lands
Ministry of Lands
"Mihikatha Medura"
No.1200/6, Rajamalwatta Road
Sri Jayawardenapura
Kotte.
- 4A. Hon. John Amaratunga
Minister of Lands
Ministry of Lands
"Mihikatha Medura"
No.1200/6, Rajamalwatta Road
Sri Jayawardenapura
Kotte.
5. I.A. Sugath Mahagama, of Halpe
Katukurundawatte
Meerigama

6. I.A. Mangala Mahagama, of Halpe
Katukurundawatte
Meerigama
7. Nelumdeni Dewage Karunaratne of
No.44/10
Kotakanda
Kaleliya
8. Nelumdeni Dewage Hemalatha of
No.97/02
Kotakanda
Kaleliya
9. Nelumdeni Dewage Priyantha Senarath of
No.97/01
Kotakanda
Kaleliya
10. Nelumdeni Dewage Chaminda Ruwan Kumara
of
No.97/11
Kotakanda
Kaleliya
11. Nelumdeni Dewage Sumanaseeli of
No.294, Polgaha Tenna
Danwala
Pasyala
12. R.D.Dickman Jayaratne
No.97/4
Kotakanda
Kaleliya
13. R.D. Indika Priyadharshani
No.97/4
Kotakanda
Kaleliya
14. The District Secretary
The District Secretariat
Gampaha
15. Hon. Attorney General
Attorney General's Department
Colombo 12.

Respondents

Before: Janak De Silva J.
&
N. Bandula Karunarathna J.

Counsel: Dr.Sunil Coorey with A.W. Diana Stephani Rodrigo for the Petitioner
L. Amarasinghe with N. Malkumara for 6,7,8,9,11 and 13th
Respondents.

Argued on: 08/07/2019

Written Submissions: By the Petitioner filed on 29.08.2019
By the 6th, 7th, 8th, 9th, 11th and 13th Respondents filed on 30.08.2019

Judgment on: 16/11/2020

N. Bandula Karunarathna J.

In this case, the Petitioner has prayed the following in his Petition:

- a. Issue notice of this application on the Respondent;
- b. Grant and issue an order in the nature of a Writ of *Mandamus* compelling the 1st Respondent to make a recommendation to the Hon. President to cancel Grant hearing Reference No. Gam/Pra/Miri/869 nominating Nelumdeni Devage Sumanaseeli on 10/08/1997 and to nominate a suitable heir/heirs under the Land Development Ordinance for the land in dispute to the said land after impartial inquiry;
- c. Grant an issue an order in the nature of a Writ of *Mandamus* compelling the 1st Respondent or his agent/ representative/authorized officer to visit the land in dispute, with notice to the Petitioners and ascertain the basis on which the 5th – 13th Respondents are residing on this land and take appropriate steps to make recommendations to the President to cancel Grant bearing Reference No.Gam/Pra/Miri/869;
- d. For costs; and
- e. For such other and further relief which Court shall seem meet.

The factual setting to this instant case is as follows;

The Petitioner's mother namely, Kumburudeni Devage Alice Nona was issued with a Grant (which is marked as 'P2' to the Petition) to Lot No.363 in Cadastral Map No.510239 marked as 'P4' to the Petition. The said Kumburudeni Devage Alice had four children,

- (i) Nelumdeni Devage Piyaseeli, (daughter).

- (ii) The Petitioner himself, (son).
- (iii) The 7th Respondent (son).
- (iv) Nelumdeni Devage Sumanaseeli, (daughter) namely the 11th Respondent.

The 1st daughter Piyaseeli had passed away and her Death Certificate is marked as 'P7' to the Petition.

The Petitioner states that Kumburudeni Devage Alice, named the 11th Respondent as the 'nominated successor' under the said Grant. On 2002.04.09 Kumburudeni Devage Alice died and her Death certificate is at Page 56 of document marked as 'P1' to the Petition. The Petitioner states that the Petitioner and his family members have obtained Grants for lots 336, 337 and 338 of said Cadastral Map No.510239 marked as 'P4'.

The Petitioner and his family members used a road way along the said Lot 363 in Cadastral Map No.510239 marked as 'P4'. The said Lot 363 is also at Page 103 of document marked as 'P1'. 'P1' is a partition action filed by the Petitioner who was the Plaintiff in such partition action. The Petitioner filed this partition action bearing No.422/P in the District Court of Atanagalle when the Defendants named in such partition action, (including the 5th to 14th respondents in this Writ Application) obstructed the Petitioner and his family members from using the said road way depicted in the Preliminary Plan No.1924 dated 2015.01.17. However, the said partition action has now been withdrawn.

The Petitioner states that the Petitioner is praying, asking for a mandate in the nature of a mandamus compelling the 1st Respondent to make a recommendation to the President to cancel Grant bearing reference No. Gam/Pra/Miri/869 nominating the 11th Respondent AND also for a mandamus compelling the 1st Respondent or his agent and representative authorized officer to visit the land in dispute with notice to the Petitioners and ascertain the basis on which the 5th to 13th Respondents are residing on this land and take appropriate steps to make recommendations to the President to cancel the Grant bearing Reference No.Gam/Pra/Miri/869.

The Petitioner states that as per section 104 of Land development ordinance; "The President may make order cancelling the grant of a holding if he is satisfied that there has been a failure of succession thereto either because there is no person lawfully entitled to succeed or because no person so entitled is willing to succeed".

The 11th Respondent who is the nominated successor has failed to succeed to the land in dispute and it is not a fact in dispute. The Petitioner states that the 11th Respondent never possessed the land after the death of Kumburudeni Devage Alice. she was a resident elsewhere, namely at 'Radawadunna' and in proof the Petitioner has annexed the Electoral Registers are marked as 'P6a' to 'P6d' for the years 1990, 1991, 1992, 1993. The Petitioner states that, the given address is the permanent address of the 11th respondent and accordingly she has sold a portion of the said State land and had allowed her other relatives to occupy the said land.

The Petitioner states that in the said Preliminary Plan No.1924 dated 2015.01.17

- | | |
|---|--|
| (1) in the house marked as c in Lot 1 | - the 12 th and 13 th Respondents are residing |
| (2) in the house marked as E in Lot 2 | - the 5 th and 6 th Respondents are residing |
| (3) in the house marked as G & H in Lot 4 | - the 8 th Respondent is residing |
| (4) in the house marked as K in Lot 5 | - the 10 th Respondent is residing |
| (5) in the house marked as L in Lot 6 | - the 9 th Respondent is residing |

Accordingly, it is submitted that the Grantor namely the 11th Respondent (who is the nominated successor to the Grant of Kumburudeni Devage Alice) nor her family members are residing at the particular disputed land and accordingly she has failed to succeed to the land in question.

The Petitioner states that in the document marked as 'P9' the Divisional Secretary has made the observation that the 11th respondent had alienated land without prior approval of the Divisional Secretary. The Petitioner emphasizes that the facts stated in 'P9' is not in dispute. Although the 11th Respondent has taken up such position during the argument that fact is in dispute, the 11th Respondent had utterly failed to prove that such fact is in dispute.

In fact, the Preliminary Plan has corroborated the fact that outsiders have constructed a house in Lot 1 in the house marked as C. Even the 1st Respondent had admitted this fact in their Statement of Objections and documents marked as 'P9' and 'P10'. The Petitioner states that in 'P9' the 1st Respondent states that number of the Deed of Gift, namely No.4188.

In the circumstances the Petitioner says that, such facts are not in dispute. The Petitioner further states that the 11th respondent is now trying to evade such fact and misrepresent facts to this Court as it would be unfavorable to them. The Petitioner has been able to prove that the 11th respondent has alienated land without prior approval of the Divisional Secretary. Accordingly, the burden then shifts to the 11th Respondent to prove that such fact is incorrect. But she has failed to prove such fact does not exist other than her mere statement in the Objections.

It is emphasized by the Petitioner that, by document marked as 'P9' and 'P10' it is manifestly clear that the 1st Respondent had knowingly and willfully failed to take action to make recommendation to the President to cancel the Grant of the 11th Respondent, when the 1st Respondent knew that the 11th Respondent had failed to succeed to the land in question and that the 11th Respondent had alienated land to 3rd parties and other relatives to construct houses in the land to the question.

The Petitioner states that the Divisional Secretary had in fact tried to settle the dispute between the parties but refused to inform the President that a Grant Holder is acting in contravention of the conditions stipulated in the Grant and thereby acting in contravention of Section 19 (6) (b). If a Holder of a Grant contravenes provisions in the Land Development Ordinance, and contravenes the conditions of the holding, then such holding should be cancelled.

He further states that if the 11th Respondent is allowed to continue to act in contravention of the conditions stipulated in the Grant, then there will be flood gates and the conditions in the Grant and section 19 (6) (b) will be of no value. An owner to a holding can without any deterrent can alienate lands as they please according to their whims and fancies.

The 6th, 7th, 8th, 9th, 11th and 13th Respondents in response to the aforesaid claims of the Petitioner states that, the Petitioner is the eldest son of the family of Kamburudeni Devage Alice, and she was the holder of the Grant of the relevant state land to this application. After the death of said Kamburudeni Devage Alice on 19-04-2002, the Petitioner had made some legal and illegal acts to grab the relevant land to this application. It is admitted in terms of the Petition of the Petitioner that he possesses three lots of land marked as No.336, 337 and 338 of the Plan No.510239 as Grantee of state Lands.

The Respondents state that the Petitioner has made the allegation that the 11th Respondent has alienated the land relevant to this application. They deny specifically the sale of the said state land or part thereof by the said Kamburudeni Devage Alice or by the 11th Respondent who is the sister of the Petitioner. All the houses referred in the Petition are the houses of the family members of Kamburudeni Devage Alice. In other words, they say that all the above said Respondents are family members of the said Kamburudeni Devage Alice. They all live peacefully on the said land and it looks like the only obstruct is the Petitioner.

The state land cannot be claimed by inheritance. The Respondents state that there is no dispute with regard to the relevant land to this application except the Petitioner. It is further stated that the land referred therein is still a state land but there is that grant given to Kamburudeni Devage Alic and subsequently to the 11th Respondent being the nominated successor of the said Kamburudeni Devage Alice.

The Respondents further state that there was no 12 feet wide road on the relevant land leading to the house of the Petitioner in terms of the survey plan submitted by the Petitioner. All the houses are partly built and built by the members of the family of the said Kamburudeni Devage Alice when she was living. The Respondents further state that there is no road depicted in the Plan No.510239 on the land named and marked Lot No.363 which is the relevant land to this application. It is illegal to build and construct a road on the state land. In the plan the right of way has been allocated by the state very fairly to all the lots of the lands shown in the plan.

The 11th Respondent has indicated that she has not waived her rights on the relevant state land and she has established her rights by coming into possession after the death of her mother said Kamburudeni Devage Alice. The 11th Respondent being the nominated successor to the said state land and she lives peacefully with her family members who are the above said 6th, 7th, 8th, 9th, 11th, and 13th Respondents in a separate house. The Petitioner also has admitted and pleaded the relationship with said Kamburudeni Devage Alice to the said Respondents who are in occupation in the relevant state land.

It is an admitted fact in terms of pleadings that the 11th Respondent was nominated as the successor of the said Kamburudeni Devage Alice to the relevant state land to this application as the other three members of the family such as the Petitioner and the 7th Respondent had been granted state lands in the same area in the same location.

A true copy of the grant of state land to the Petitioner is also produced marked "6R1". It is further stated that the Petitioner had been granted 03 lots of lands as per the plan No.510239 referred in paragraph 09 of the Petition although the "6R1" refers to one lot of land. The Respondents submit

that the Petitioner made undue pressure such as legal actions, and false complaints on them to grab and use the relevant land as a road which is illegal, unlawful, unfair, impossible and impracticable. The Petitioner has no right to enter relevant land to this application as the 11th Respondent is the nominated successor of said Kamburudeni Devage Alice although the Petitioner is the eldest in the family of the Kamburudeni Devage Alice.

The Respondents further state that the Petitioner was not in possession of the state land concerned in this application. Therefore, the issue of ejection does not arise. The Respondent argue that the Petitioner has misrepresented and suppressed the material facts of the issue involved in this application before the Ministry of Lands and the public officers such as 1st, 2nd, and the 14th Respondent to grab the land relevant to this application and any how the officers concerned realizing the issue have refrained from interfering with the issue of this case which is private and family issue.

The Petitioner is claiming the rights to the relevant land to this application as the eldest son of the said Kamburudeni Devage Alice and which is not permitted in law as there is a nominated successor, the 11th Respondent, and which is duly registered in the relevant Land Registry as required by law and acquired possession of the relevant land by the 11th Respondent, to this application after the death of her mother. There was no suggestion to partition the land concerned by the 1st Respondent as it is obviously illegal.

The Respondents further emphasize that the Petitioner had made false complaints to the officers concerned with cruel and bad intension to harm his own relatives. They all say that the Petitioner is alone on one side and the others the above said Respondents are on the other side of the conflict. It is emphasized that the complaint of the Petitioner is a private and a family dispute and not otherwise.

Subsequent to a thorough analysis of the facts of this case, it could be revealed that the issues or the questions of law to be determined and decided is whether the 1st Respondent has a public duty to cancel the grant given to the 11th Respondent and to recommend the President of the Democratic Socialist Republic of Sri Lanka to cancel a grant given after land kachcheri or due process in terms of Land Development Ordinance, to the 11th Respondent. The other vital question of law is whether the Petitioner has a legitimate expectation with regard to cancellation of the grant given to the 11th Respondent and to recommend the President to cancel a grant given after land kachcheri.

It could also be noted that Petitioner has complained in his Petition that the 11th Respondent has violated the terms and conditions of the relevant Grant to this application. The above Respondents deny the said violation of terms and conditions of the said Grant. Accordingly, the major facts and allegations are in dispute.

It is held as follows in the case of THAJUDEEN VS SRI LANKA TEA BOARD AND ANOTHER (1981) 2 SLR 471 inter alia that;

“Where the major facts are in dispute and the legal result of the facts is subject to controversy and it is necessary that the questions should be canvassed in a suit where

parties would have ample opportunity of examining the witnesses so that the Court would be better able to judge which version is correct, a Writ will not issue. Mandamus is pre-eminently a discretionary remedy. It is an extraordinary, residuary and suppletory remedy to be granted only when there is no other means of obtaining justice. Even though all other requirements for securing the remedy have been satisfied by the applicant, the court will decline to exercise its discretion in his favor if a specific alternative remedy like a regular action equally convenient, beneficial and effective is available"

In the circumstances aforesaid, the application is hereby dismissed, with cost

Judge of the Court of Appeal

Janak De Silva , J

I agree.

Judge of the Court of Appeal